

## 25STCV09671 25STCV09671

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-19

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Case Number: 25STCV09671 Hearing Date: August 19, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

ERNEST

JEROME WEBB,

Plaintiff,

vs.

EDWIN

JOSE ESCOBAR CHAVEZ, et al.,

Defendants.

Case No.:

25STCV09671

Hearing

Date:

August 19, 2026

## ORDER

### GRANTING MOTION FOR SUMMARY JUDGMENT

#### I. BACKGROUND

Plaintiff Ernest Jerome

Webb ("Webb") was being transferred via Defendant Viva Medicare Trans, Inc.'s ("Viva") ambulance, driven by Defendant Armen Petrosian ("Petrosian"), when Defendant Edwin Jose Escobar Chavez ("Chavez") allegedly negligently collided with Viva's ambulance, causing injury to Webb. Webb sued Defendants for motor vehicle negligence and general negligence.

On April 16, 2026, Viva and Petrosian (collectively "Moving Defendants") filed the instant motion for summary judgment, or, in the alternative, summary adjudication. No party filed an opposition.

#### III. LEGAL STANDARD

A

party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a).<sup>[1]</sup>) "[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law," the moving party will be entitled to summary judgment. (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

The

moving party bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, and if he does so, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, citing to § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Neither

a moving nor responding party may rely on the mere allegations or denials of its pleadings. A moving party must submit specific admissible evidence showing that the responding party cannot establish at least one element of his, her or its cause of action or defense. The responding party, to defeat the motion, must submit specific admissible evidence showing that a triable issue of material fact does exist as to that element of the cause of action or defense. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

The

“Golden Rule” on a motion for summary judgment or summary adjudication is that “if [a fact] is not set forth in the separate statement, it does not exist.” (Zimmerman, Rosenfeld, Gersh & Leeds LLP v. Larson (2005) 131 Cal.App.4th 1466, 1477, citing United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.).

### III. DISCUSSION

Moving Defendants request

the Court enter summary judgment as Webb, via discovery, admitted Moving Defendants were not negligent in regard to the subject incident. Both causes of action for motor vehicle negligence and general negligence have the same basic elements: “(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” ’ ’ (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917.)

Here, Webb served discovery

responses clearly establishing Moving Defendants did not breach any duty to Webb while transporting Webb via an ambulance on the day of the incident. It is undisputed Webb was properly secured in the ambulance bay at the time of the incident. (UMF 3, 13.) The ambulance was proceeding lawfully and slowly making a left-hand turn when it was rear-ended. (UMF 15.) The ambulance, confirmed via video, was lawfully positioned in the correct lane of travel and had fully stopped at a red light, at the time of impact by Chavez’s vehicle. (UMF 7.) Webb stated, via verified discovery, he does not contend the ambulance was improperly maintained, operated, or equipped. (UMF 14, 17.) He also stated he has no evidence of Viva or Petrosian acting negligent in any manner. (UMF 17-18.)

Webb’s responses also

establish Webb has no evidence to indicate Moving Defendants caused any injury to Webb. Webb stated his injuries were solely caused by the rear-end impact of Chavez's vehicle. (UMF 11-13.) Webb specifically identified Chavez's unsafe speed and failure to maintain a safe distance as the sole cause of the collision. (UMF 11-14.)

All evidence shows Moving

Defendants did not breach any duty or otherwise cause Webb's injuries stemming from the incident. Moving Defendants have met their burden of establishing Moving Defendants are not liable for either cause of action. The burden shifts to Webb, who has not opposed this motion. Therefore, the Court grants summary judgment.

#### IV. CONCLUSION

Defendants Viva Medicare Trans, Inc. and  
Armen Petrosian's motion for summary judgment is GRANTED.

Moving Defendants are to give notice.

DATED:

August 19, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.